

Note! The workshop will be held via the Zoom platform. All who have registered will receive a link and instructions for participation no later than two days before the workshop. All spots for the workshop are filled, reaching the maximum number of 500 participants. The presentation will be published at <https://arc-rec-project.eu/prezentacije/> and will not be sent to participants via email. A recording of the workshop will be available on the ARC 2 project website in December.

All controllers and processors, regardless of activity, process personal data of their employees and collaborators. Employee data is processed for the purposes of fulfilling the employer's legal obligations, fulfilling rights and obligations arising from the employment contract and employment relationship, achieving legitimate interests of the employer, etc. The processing of employee data begins with the publication of a job advertisement or the collection of open applications from interested candidates, and continues even after the termination of the employment relationship. Throughout this time, it is essential to ensure the legality of processing and to adequately protect the data, as well as the privacy of employees.

This free workshop, held as part of the ARC2 project, covers an overview of obligations under the General Data Protection Regulation (GDPR) in all major processes of personal data processing in the employment relationship and numerous practical examples, as well as an overview of case law and decisions of supervisory authorities. It is primarily intended for micro, small, and medium-sized enterprises and craftsmen, but also for all other interested employers/organizations/data protection officers. It will take place on October 12, 2023, from 10:00 AM to 1:00 PM.

Content:

1. Data processing in the employment process – job advertisements, open applications, online platforms, employment agencies
2. Principle of transparency – content and method of informing employees about data processing
3. Appropriate legal basis for processing employee data – contract, legal obligation of the employer, legitimate interest, etc.
4. Consent in the employment relationship – appropriateness, legality, examples
5. Processing of special categories of personal data – health data, disability, religion, union membership, psychological test results, certificates of non-conviction, etc.
6. Necessary documentation – certificates, diplomas, identification documents, copies of documents
7. Record of processing activities – mandatory content and examples of typical processing in the employment relationship
8. Conditions for permissible employee monitoring – access control, recording phone calls, GPS systems, monitoring the use of official mobile phones, computers, email, and the Internet, etc.
9. Video surveillance of official premises – legal basis, mandatory documentation, informing employees
10. Processing of biometric data – legal framework, examples
11. Data Protection Impact Assessment (DPIA) – examples of high-risk processing
12. Retention periods for personal data – legal retention periods, determining other storage periods
13. Fulfillment of rights of employees and former employees – procedure for fulfilling requests, identification of data subjects, deadlines
14. Obligations of employees – confidentiality, examples of confidentiality statements and contractual provisions
15. Relationships with processors – mandatory components of contracts and examples of processors in the employment relationship
16. Disclosure of personal data to third parties – public and other competent authorities
17. Corporate culture and employee privacy – public announcements, "employee of the month," highlighting employee photographs at the point of sale, team gatherings, etc.
18. Appropriate measures for the protection of documentation and IT systems – examples of protective measures
19. Data transfer to third countries – examples of transfers, protective measures
20. Responsibilities of data protection officers in processing related to the employment relationship

21. Overview of decisions and opinions of the EU Court, European Court of Human Rights, national courts, and supervisory authorities
22. Other specifics (right to access information, EU projects, student internships, student work, etc.)